AyalaLand

MERCHANT'S COPY

24 January 2025

CONTRACT OF LEASE RENEWAL

Mr. Adrian Dimacali
Cafe Mary Grace
Mary Grace Foods, Inc.
Serendra, Bonifacio High Street
Bonifacio Global City, Taguig City

Dear **Mr. Dimacali:**

This is with regard to your lease contract for your **CAFE MARY GRACE** outlet located at Serendra Bonifacio High Street, Bonifacio Global City, Taguig City, which expired last **31 December 2024.**

We shall renew your lease under the same terms and conditions stated in our Contract of Lease (as amended, if applicable), subject however to the following amendmen
ts and your compliance with the conditions set forth herein:

1. **TERM**: Your lease shall be renewed from **01 January 2025 to 31 December 2025** (the "Renewed Term"), provided the Lessee faithfully complies with all the provisions stated in the contract.

2. **AREA**: **97.26** square meters.

3. **RENT**: Your monthly rent per square meter for the Renewed Term shall be equivalent as follows:

	Period	Basic Rent	Percentage Rate	Minimum Rent	Sales Quota
From	01 January 2024 to 31 December 2024	**P1,105.00**	**5%**	**P1,705.00**	**P12,000.00**
To	01 January 2025 to 31 December 2025	**P1,195.00**	**5%**	**P1,795.00**	**P12,000.00**

*plus the applicable VAT

4. **ADDITIONAL SECURITY:** For the renewed term, you shall deliver to us the Additional Security as required under the Contract of Lease. You shall therefore pay us on the date specified in the Statement of Account the excess of the new security deposit over the amount of the Additional Security already remitted to us.

New Security Deposit	**P**	**1,047,490.20**
Less: Existing Security Deposit	**P**	**511,123.50**
Additional Security Deposit	**P**	**536,366.70**

5. **CUSA & INAC:** Effective **01 January 2025**, Your monthly common area charges per square meter and fixed air-conditioning charges for the Renewed Term shall be adjusted as follows:

CUSA	INAC
P165.00 per sqm	**P305.00 per sqm**

6. **AD & PROMO:** Effective **01 January 2025**, Your annual share of advertising and promotional expenses for the Renewed Term shall be adjusted as follows:

AD & PROMO
P10,800.00 per annum

7. **ESTATE DUES & FEES:** The location of the Commercial Center is regulated by Bonifacio Global City Estate Association (BGCEA). As such, the LESSOR as the Commercial Center owner and LESSEE as locator are both subject to the rules and regulations of BGCEA such as, but not limited to, association dues, architectural guidelines, work and delivery permits, road usage and corresponding fees related thereto, as may be amended or imposed by BGCEA from time to time.

The LESSEE shall be liable for its pro rate share in the payment of the estate association dues and expenses in the same proportion that the leasable area of the Leased Premises bears to the total leasable area of the Commercial Center. For purpose of determining the commencement of the obligation of the LESSEE to pay its pro rate share in the association dues and expenses, it shall be understood that such obligation shall

commence on the calendar month on which the lease term falls, whether or not such day falls on the first day of such calendar month. The LESSOR shall bill the LESSEE is pro rata share in the BGCEA dues and the LESSEE shall pay the same on the due date specified in the applicable statement of account.

Thus, effective **01 January 2025**, Your monthly share of estate association dues per square meter for the Renewed Term shall be as follows:

Association Dues
P20.00 per sqm

8. **OTHER CONDITION:** As part of the consideration for the grant of this lease, the LESSEE agrees that all its sodas, water, beverages, ice and other related requirements shall be purchased from the LESSOR and/or its accredited supplier

9. **ZING LOYALTY PROGRAM AND SCAN TO PAY FACILITY:** (a) As part of the consideration for the grant of the lease, the LESSEE shall enroll as member and participate in Ayala Malls' Zing Loyalty Program and submit such form and information necessary for the LESSOR to grant LESSEE's customers with Zing loyalty points for every eligible spend or purchase in the Leased Premises. The LESSEE shall accordingly adopt such scan-to-pay facilities accredited by the LESSOR as payment options in the Leased Premises. (b) The LESSOR shall issue and the LESSEE shall display in the Leased Premises such marketing materials (including, but not limited to, acrylic table standee, flyers, and/or "Zing" door/window sticker or hanger) which shall feature the Zing logo, among others, in order to convey to customers that the LESSEE is a participating merchanting in the Ayala Malls' Zing Loyalty Program. The LESSOR may vary the design and execution of such marketing materials from time to time. The LESSEE may also request for or use customized marketing materials, subject to mutual agreement of the LESSOR and the LESSEE. (c) As a participating merchant in the Ayala Malls' Zing Loyalty Program, the LESSEE may be requested to promote the use of Ayala Malls' Zing to its customers for the latter to earn loyalty points for every eligible spend or purchase. The LESSEE, at its option, may also enter into specific co-marketing promotions with the Ayala Malls' Zing Loyalty Program.

10. **NOTICE:** Where demand or notice is required to be given under this Contract, notice sent to the LESSEE (a) at the Leased Premises or at the address specified above either by registered mail, private courier or by personal delivery; (b) by e-mail at the address specified in the Merchant Information Sheet; or (c) via the Ayala Mall's Merchant Portal shall be considered sufficient compliance with the requirement of notice or demand. The LESSEE undertakes to inform the LESSOR regarding change of address or email address.

Except as provided above, all other terms and conditions of our Contract of Lease shall remain the same. Terms used herein shall have the same meaning as that provided in our Contract of Lease.

Kindly indicate your conformity below and return to us the original and one (1) copy of this letter **not later than** FEB 21 2025 Should we not receive a reply from you with regard to this matter on or before the said date, we will deemed it to mean that you have ACCEPTED and AGREED to all the terms and conditions herein stated. This letter, when signed or deemed accepted by you shall constitute an amendment and addendum to our Contract of Lease and shall form an integral part thereof.

As our valued partner, we take utmost priority in keeping your account updated and ensuring that our correspondences reach you as intended. In this regard, kindly fill up the attached Merchant Information Sheet and return to us together with this renewal letter.

Sincerely,

AYALA LAND, INC.
Manager of Serendra Retail Project

MARIA CRISTIA A. TICZON
Attorney-in-Fact

AILEEN Q. VESCADOR
Attorney-in-Fact

CONFORME:
Mary Grace Foods, Inc.
By:

Date: 18 Mar. '25

Mr. Adrian Dimacali
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